

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 23-04

PORTS AMERICA CHESAPEAKE, LLC,

and

MARINE TERMINALS CORPORATION-EAST,

COMPLAINANTS,

v.

APS EAST COAST, INC.,

RESPONDENT.

COMPLAINANTS' EMERGENCY MOTION FOR
EXTENSION OF TIME

Complainants, Ports America Chesapeake, LLC, and Marine Terminals Corporation-East (collectively "Complainants") by and through their undersigned counsel, hereby submit this Emergency Motion for Extension of Time. Complainants are requesting a brief extension of one (1) week to file its opening brief and proposed findings of fact because it just recently learned that Respondent has proposed changes to its marine terminal operator schedule/tariff that are material to the issues in this case and that are scheduled to take effect this Saturday, June 1, 2024. If granted, we would consent to a like extension of the response and reply briefings by one week as well.

Late Friday evening, on May 24, 2024, Complainants' business personnel received a letter from Respondent's business personnel that AMPORTS would be making changes to AMPORTS' tariff schedule that would be going into effect this Saturday, June 1, 2024 (the "Notice Letter"). The Notice Letter described the intended changes in relevant part as follows:

AMPORTS is discontinuing its exclusive stevedoring program and replacing it with uniform tariff-based requirements and standards and a uniform terminal access fee that are applicable to all stevedoring service providers desiring to work on the terminals.

The Notice Letter did not contain the proposed rule text or further describe the proposed access fee. Yesterday afternoon, after the Memorial Day holiday, we obtained a copy of what we believe to be the text of the proposed schedule rules and rate changes from the tariff publisher. The proposed changes are material to the provisions and access fee matters at issue in this proceeding. Among other things, the changes intend to expressly assess against stevedores a new \$10 per car charge in order for Complainants to provide stevedoring services to its ocean carrier customers utilizing AMPORTS berths, and/or loading or discharging cargo at AMPORTS' terminals, in Baltimore, MD.

This is the second change to the AMPORTS schedule in two weeks. On May 15, 2024, Complainants became aware that AMPORTS had revised the terminal schedule to remove the \$25 per car access fee altogether, effective immediately that day on May 15, 2024. As a consequence, in the intervening two-week period the AMPORTS schedule has contained no access fee. The instant abrupt change proposing to reinstitute a different access fee has significant implications for stevedoring operations and material implications for the matters directly at issue in this proceeding.

Complainants' business team is currently evaluating the implications of the proposed changes on business and operational matters, and counsel are currently evaluating the implications of the proposed changes on the present proceedings. As you know, Complainants' opening briefing

is due to be filed on Friday, May 31, 2024—one day before the effective date of the proposed changes. In light of the very short notice, additional time is needed to properly evaluate this new development and to respond in an orderly fashion consistent with the interests of the Commission and the parties in a clear and complete administrative record.

For the foregoing reasons, Complainants submit that good cause exists for the requested extension, and further, that reasonable grounds exist under the circumstances for filing the instant motion in less than the time provided for in 46 C.F.R. § 502.102(a). This request is being made in good faith and we submit that it should not cause undue prejudice or delay to either party. While AMPORTS was aware of its intent to modify relevant tariff positions in advance of its Notice Letter, presumably was aware of the briefing schedule in this proceeding, and had time to evaluate and prepare its changes, Complainants only found out about the changes over the Memorial Day weekend and did not obtain the substance of the changes until just yesterday.

Undersigned conferred with counsel for AMPORTS today by email and phone to discuss and seek consent to this request. Counsel for AMPORTS advised that their client did not have sufficient time to evaluate the request and respond today. Mindful of the timing and the urgency of this request, we are proceeding with this request without delay. We further submit that a short one-week extension of time to submit the opening briefing (and/or one week extension to the overall briefing schedule) will not materially delay the overall schedule in this proceeding, and will help ensure a more complete record and submission to Your Honor of the material matters at issue.

If granted, and assuming a like extension of one week for the response and reply briefings, Complainants respectfully request extension of the briefing deadlines as follows:

Event	Current Deadline	Requested Deadline
Complainant's brief, proposed findings of fact, and appendix	May 31, 2024	June 7, 2024
Respondents' opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	July 1, 2024	July 8, 2024
Complainant's reply brief and responses to proposed findings of fact	July 15, 2024	July 22, 2024

For the reasons set forth above, Complainants respectfully requests that its Emergency Motion for Extension of Time be granted.

Dated: May 29, 2024

Respectfully Submitted,

HOLLAND & KNIGHT LLP

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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Executed: May 29, 2024

/s/ Kristine O. Little

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